



Mathew Tyler

550 Vallombrosa Ave # 6471

Chico, CA 95927

+1-262-757-8802

Matthew_25:31-46@fakegov.com

Plaintiff, *Pro per pro se*

Dated: June 4, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

***Case No.* 2:2025CV00404**

PLAINTIFF'S OBJECTION TO UNCONSTITUTIONAL AND

DISCRIMINATORY RULING; ECF No. 19, Page No. 2, Line No. 15-17

1 **I. INTRODUCTION**

2 1. As outlined below, government entities defending themselves is a continuation
3 of crimes government entities are accused of violating. As detailed below, this Court is
4 also without jurisdiction or authority to supersede the US Constitution.

5
6 **II. LEGAL STANDARD; Prima facie Constitutionally prohibited and federally**
7 **prohibited--**

8 1. In accordance with Article VI, clause 2 (the “Supremacy clause”) of the US
9 Constitution, the US Constitution is the supreme law of the land¹²³; then federal law⁴⁵;
10 then state law.

11
12 2. The criteria for US President is explicitly vested in the US Constitution⁶. By
13 “defending” themselves, government entities are:

1 *Crosby v. National Foreign Trade Council*, 530 U.S. 363 (2000)

2 *Exon v. Tiemann*, 279 F. Supp. 609, 613 (D. Neb. 1968) (“There being no such requirement in the
Constitution itself, a state cannot require that a Representative live in the District from which he was
nominated.”)

3 *State ex rel. Chavez v. Evans*, 446 P.2d 445, 448 (N.M. 1968) (“[The New Mexico statute,] by requiring
that each candidate for representative in Congress be a resident of and a qualified elector of the district
in which he seeks office, adds additional qualifications to becoming a candidate for that office.... [W]e
must hold the provisions of the Federal Constitution prevail and that this statute unconstitutionally adds
additional qualifications.”)

4 *McCulloch v. Maryland*, 17 U.S. (4 Wheat.) 316 (1819)

5 *Arizona v. United States*, 567 U.S. 387 (2012)

6 Article II, Section 1, Clause 5 of the US Constitution; (1) Natural born citizen, (2) 35 years of age or
older, and (3) fourteen year residency within the United States

1 a) acting in a prohibited way by enforcing laws⁷⁸⁹ that impose eligibility
2 criteria¹⁰ that conflicts with the US Constitution¹¹¹²¹³. In accordance with Article
3 VI, clause 2 of the US Constitution, the conflicting state laws are superseded and
4 preempted by Article II, Section 1, Clause 5 of the US Constitution thereby
5 eliminating the appearance of any government entity rights in defending its
6 actions of imposing conflicting eligibility criteria in the fraudulent 2024 election;
7 and,
8 b) discriminating¹⁴ and/or segregating; 42 U.S.C. § 2000a(d), 42 U.S.C. §
9 2000a(a); 42 U.S.C. § 2000d; 28 C.F.R. § 35.130(a); 42 U.S.C. § 12132; 42
10 U.S.C. § 12182(b)(1)(A)(i); 42 U.S.C. § 12182(b)(2)(A)(ii); 28 C.F.R. §
11 35.102(a); and,

7 Exceeding Constitutional bounds; *Youngstown Sheet & Tube Co. v. Sawyer*, 343 U.S. 579, 635 (1952)
8 Exceeded Constitutional bounds harm Constitutional governance; *New York Times Co. v. United States*,
9 403 U.S. 713, 717 (1971)
10 18 U.S.C. § 595
11 *Hellman v. Collier*, 141 A.2d 908, 912 (Md. 1958) (same); cf. *U.S. Term Limits, Inc. v. Thornton*, 514
12 U.S. 779 (1995) (state may not impose term limits on its congressional delegation)
13 *Cook v. Gralike*, 531 U.S. 510 (2001), United States Supreme Court held that an attempt by the state of
14 Missouri to influence Congressional elections in favor of candidates who supported term limits was
unconstitutional. The Court held that the powers delegated to the states by the Elections Clause related
only to the power over the procedural mechanisms of elections. Because this amendment sought to
influence the outcome of elections, it exceeded state powers over national elections
12 Founding and historic tradition; *Burdick v. Takushi*, 504 U.S. 428, 446 (1992) (“...until the late 1800’s,
all ballots cast in this country were write-in ballots. The system of state-prepared ballots, also known
as the Australian ballot system, was introduced in this country in 1888. See L.E. Fredman, *The
Australian Ballot: The Story of an American Reform* ix (1968). Prior to this, voters prepared their own
ballots or used preprinted tickets offered by political parties. Since there were no state-imposed
restrictions on whose name could appear on a ballot, individuals could always vote for the candidates
of their choice.”)
13 *Trump v. Anderson*, No. 23-719, 601 U.S. (2024), “It would be incongruous to read this particular
Amendment as granting the States the power — silently no less — to disqualify a candidate for federal
office,” establishes: (1) States lack the power to disqualify a candidate for federal office and, (2) that
not including a candidate on the ballot, even for a primary would be disqualifying the candidate
14 *Mary Jo C. v. New York State and Local Retirement Sys.*, No. 11-2215, 35 at 6 - 36 at 2, 37 at 7 - 39 at
9 (2d Cir. 2013)

1 c) violating 42 U.S.C. § 12133, using federal financial assistance for
2 discrimination; and,
3 d) the government, including this Court is required to seek to be inclusive of
4 qualified individuals with a disability, not seek to exclude¹⁵; continuing to not
5 operate in the most inclusive way to the qualified individual with a disability's
6 needs; 28 C.F.R. § 35.130(b)(7); 28 C.F.R. § 35.130(d); 42 U.S.C. § 12182(b)(1)
7 (B); and,
8 e) not furnishing auxiliary aids and services, including this Court; 28 C.F.R.
9 § 35.160(b)(1); 42 U.S.C. § 12182(b)(2)(A)(iii); and,
10 f) imposing unconstitutional, discriminatory criteria¹⁶; 42 U.S.C. § 12182(b)
11 (2)(A)(i); 28 C.F.R. § 35.130(b)(8); and,
12 g) violating Plaintiff's: First, Fifth, Fourteenth amendment rights, and
13 deprivation of: life, liberty, property, and benefits without first affording due
14 process¹⁷; constituting violations of 18 U.S.C. §§ 241-242. **In accordance with**
15 **42 U.S.C. § 1987, this Court is authorized and required to initiate**
16 **prosecution at the expense of the United States**; and,
17 h) government entities arising from the results of this nationally fraudulently
18 interfered election and fraudulently certified election are "Fruit of the Poisonous

15 Recently California Attorney General's suggestive remarks that Plaintiff is not a qualified individual with a disability, despite Plaintiff having provided a doctors note and pictures of Plaintiff on the 8th grade Washington DC field trip being in a wheelchair from not being able to walk the distance of the field trip.

16 *Baker v. Carr*, 369 U.S. 186, 237 (1962)

17 *Goss v. Lopez*, 419 U.S. 565 (1975)

18 *Goldberg v. Kelly*, 397 U.S. 254 (1970)

1 tree;¹⁹²⁰ Arising from fraud²¹, the government entities have no legitimate
2 authority and as such cannot defend themselves; and,
3 i) interfering with Plaintiff's federally protected activities²²,
4 i. qualifying and campaigning as a candidate for elective office; and,
5 ii. participating in or enjoying any benefit, service, privilege, program,
6 facility, or activity provided or administered by the United States; and,
7 iii. participating in or enjoying the benefits of any program or activity
8 receiving Federal financial assistance
9 j) The office of US President of the United States pertaining to employment,
10 consequently causing Plaintiff to suffer business, property, and personal injuries.

11

12 **III. FACTUAL BACKGROUND**

13 1. Beginning in February 2024, Plaintiff submitted formal Section 504/ADA
14 accommodation requests to all 50 states' Secretaries of State, seeking medical
15 exceptions to signature collection requirements for ballot access due to
16 documented disabilities.
17 2. Plaintiff's disabilities include Central Core Disease affecting manual tasks,
18 walking, standing, lifting, bending, breathing, and stamina, as well as ADHD
19 affecting learning, reading, concentration, thinking, and communication—all

19 *Harper v. Virginia Board of Elections*, 383 U.S. 663, 670 (1966)

20 *Harvell v. Blytheville School District No. 5*, 71 F.3d 1382, 1389-90 (8th Cir. 1995)

21 *Wong Sun v. United States*, 371 U.S. 471 (1963)

22 18 U.S.C. § 245(b)(1)(A), (B), (E)

1 documented by medical evidence and photographic proof of Plaintiff's
2 wheelchair use during the 8th grade Washington D.C. field trip.

3 3. Despite citing controlling federal law including the ADA, Section 504, and
4 constitutional provisions, all 50 states systematically denied or ignored
5 Plaintiff's accommodation requests, with California taking six months to
6 respond before ultimately denying accommodation without legal justification.

7 4. On November 6, 2024, Plaintiff submitted a Criminal Complaint to Congress
8 detailing these systematic violations, which was transmitted to Senator Bernie
9 Sanders' offices on November 8, 2024, providing actual notice of the
10 violations before certification.

11 5. Defendants proceeded to certify the 2024 election results despite knowledge
12 of pervasive discrimination that excluded Plaintiff from the ballot solely based
13 on disability.

14 6. The California Attorney General recently made discriminatory remarks
15 suggesting Plaintiff is not a qualified individual with a disability, despite
16 Plaintiff providing medical documentation and photographic evidence of
17 disability from when Plaintiff was in a wheelchair in 8th grade for a field trip
18 due to the amount of walking required.

19 7. Defendants continue to perpetrate ongoing violations, including the current
20 administration's escalating discrimination arising from the fraudulently certified election.

21

1 IV. **ARGUMENT**

2 **1. Government Entities Lack Standing to Defend Ultra Vires Acts**

3 When government officials act beyond their constitutional authority, they cannot
4 claim governmental immunity or authority to defend such actions. *Ex parte*
5 *Young*, 209 U.S. 123, 159-60 (1908) ("The act to be enforced is alleged to be
6 unconstitutional, and if it be so, the use of the name of the State to enforce an
7 unconstitutional act to the injury of complainants is a proceeding without the
8 authority of and one which does not affect the State in its sovereign or
9 governmental capacity.").

10
11 As the Supreme Court declared in *Cooper v. Aaron*, 358 U.S. 1, 18 (1958), "No
12 state legislator or executive or judicial officer can war against the Constitution
13 without violating his undertaking to support it." By imposing ballot access
14 requirements that conflict with Article II's exclusive qualifications, Defendants
15 exceeded all constitutional authority and cannot now defend these ultra vires acts.

16 **2. Mandatory Criminal Prosecution Under 42 U.S.C. § 1987**

17 This Court has a non-discretionary duty under 42 U.S.C. § 1987 to initiate
18 criminal prosecution: "it shall be the duty of the district attorney... to institute
19 prosecutions against all persons violating any of the provisions of [civil rights
20 statutes]... and the expense of such proceedings shall be paid out of the Treasury
21 of the United States."

1 The Supreme Court in *United States v. Price*, 383 U.S. 787, 801 (1966), mandated
2 broad construction of civil rights enforcement statutes, holding that § 241
3 "embraces all of the rights and privileges secured to citizens by all of the
4 Constitution and all of the laws of the United States." The systematic deprivation
5 of Plaintiff's rights across all 50 states constitutes precisely the type of conspiracy
6 § 241 was designed to address.

7 **3. Continuing Violations Doctrine Precludes Defense**

8 The continuing violations doctrine applies when discriminatory acts are part of an
9 ongoing pattern. *Havens Realty Corp. v. Coleman*, 455 U.S. 363, 380-81 (1982).
10 The current administration's ongoing discrimination against Plaintiff, stemming
11 from the fraudulently certified election, constitutes a continuing violation that
12 began with the denial of accommodations and persists today.

13
14 Each day Defendants maintain the results of the discriminatorily conducted
15 election constitutes a new violation, tolling any limitations period and establishing
16 ongoing liability. *National Railroad Passenger Corp. v. Morgan*, 536 U.S. 101,
17 117 (2002).

18 **4. Criminal Violations Bar Any Defense**

19 Defendants' criminal violations render any defense legally void:

1 a) **Obstruction of Justice** (18 U.S.C. § 1503): Defendants' coordinated
2 denial of accommodations obstructed Plaintiff's access to judicial
3 remedies.

4 b) **Conspiracy to Defraud the United States** (18 U.S.C. § 371): The
5 systematic exclusion of qualified candidates constitutes fraud upon the
6 electoral system.

7 c) **Deprivation of Rights Under Color of Law** (18 U.S.C. § 242): Willful
8 deprivation of constitutional rights by state officials acting under color of
9 law.

10 As established in *In re Neagle*, 135 U.S. 1, 75 (1890), government officials who
11 exceed their lawful authority act as private individuals and cannot claim
12 governmental protection for their unlawful acts.

13 5. **Fruit of the Poisonous Tree Doctrine Voids All Defenses**

14 The Supreme Court's "fruit of the poisonous tree" doctrine, established in *Wong*
15 *Sun v. United States*, 371 U.S. 471, 488 (1963), requires exclusion of all evidence
16 and outcomes derived from illegal government conduct. The 2024 election results,
17 and the current administration arising therefrom, constitute fruit of the poisonous
18 tree due to the systematic discrimination in the electoral process.

19 Federal courts have specifically applied this doctrine to void elections tainted by
20 discrimination. *Harvell v. Blytheville School District No. 5*, 71 F.3d 1382, 1389-90

1 (8th Cir. 1995) (applying doctrine to invalidate discriminatory election practices);
2 *Bell v. Southwell*, 376 F.2d 659, 664 (5th Cir. 1967) (voiding election results due
3 to discrimination).

4 **6. Preemption Eliminates State Authority to Impose Additional**
5 **Qualifications**

6 The Supremacy Clause definitively preempts any state authority to impose
7 qualifications beyond those in Article II, Section 1, Clause 5. *U.S. Term Limits,*
8 *Inc. v. Thornton*, 514 U.S. 779, 827 (1995) ("Allowing individual States to adopt
9 their own qualifications for congressional service would be inconsistent with the
10 Framers' vision of a uniform National Legislature representing the people of the
11 United States.").

12 The Supreme Court in *Powell v. McCormack*, 395 U.S. 486, 547 (1969), held that
13 the Constitution's qualification clauses are "exclusive." Any state-imposed
14 signature requirements that effectively exclude constitutionally qualified
15 candidates are void ab initio.

16 **7. Due Process Violations Preclude Government Defense**

17 The government cannot defend its denial of benefits without first affording due
18 process. *Goldberg v. Kelly*, 397 U.S. 254, 267 (1970) ("The right to be heard
19 before being condemned to suffer grievous loss of any kind... is a principle basic
20 to our society."); *Goss v. Lopez*, 419 U.S. 565, 579 (1975) (due process required
21 before deprivation of protected interests).

1 By denying ballot access without any meaningful process to consider Plaintiff's
2 disability accommodations, Defendants violated fundamental due process,
3 rendering their actions indefensible.

4

5 V. **CONCLUSION**

6 For the foregoing reasons, Plaintiff respectfully requests this Court:

- 7 1. **Strike all government defenses** as legally void due to ultra vires acts,
8 criminal violations, and constitutional prohibitions;
- 9 2. **Enter default judgment** against all Defendants for failure to present any
10 legally cognizable defense;
- 11 3. **Initiate immediate criminal prosecution** under 42 U.S.C. § 1987 against all
12 Defendants for violations of 18 U.S.C. §§ 241-242, with expenses paid from
13 the U.S. Treasury;
- 14 4. **Declare the 2024 election void ab initio** as fruit of the poisonous tree
15 resulting from systematic discrimination;
- 16 5. **Order a new election** within 90 days that includes Plaintiff with all required
17 ADA accommodations;
- 18 6. **Award compensatory and punitive damages** for violations of Plaintiff's
19 constitutional and statutory rights;
- 20 7. **Award attorneys' fees** under 42 U.S.C. § 1988 and 42 U.S.C. § 12205;

- 1 8. **Issue permanent injunctive relief** preventing future discrimination in ballot
- 2 access;
- 3 9. **Grant such other relief** as this Court deems just and proper.
- 4

1 Dated: June 04, 2025

2

3 Respectfully submitted,

4

5

6  **Mathew Tyler**

7 550 Vallombrosa Ave # 6471

8 Chico, CA 95927

9 +1-262-757-8802

10 Matthew_25:31-46@fakegov.com

11 **Plaintiff, *Pro per pro se***

1 VERIFICATION

2
3 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
4 that the foregoing is true and correct to the best of my knowledge and belief.

5
6 Executed on June 04, 2025, at Butte County, California.



Mathew Tyler

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12 Chico, CA 95927

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14 Matthew_25:31-46@fakegov.com

15 ***Plaintiff, Pro per pro se***